

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Haeley Galeote	Team: Squad #14	CCRB Case #: 202104750	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Tuesday, 08/03/2021 7:00 PM	Location of Incident: § 87(2)(b)	18 Mo. SOL 2/3/2023	Precinct: 123		
Date/Time CV Reported Wed, 08/11/2021 9:45 AM	CV Reported At: CCRB	How CV Reported: Call Processing System	Date/Time Received at CCRB Wed, 08/11/2021 9:45 AM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Witness(es)	Home Address
§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. PO Haytham Shehabeldin	20171	962799	123 PCT
2. PO Nicholas Ditore	27913	969659	123 PCT
3. LT Eduard Shtotland	00000	946248	123 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. PO Marissa Pascone	00933	965400	123 PCT
2. PO Arniko Shrestha	30594	946556	123 PCT
3. PO Robert Campbell	27428	938156	123 PCT

Officer(s)	Allegation	Investigator Recommendation
A . PO Haytham Shehabeldin	Abuse: Police Officer Haytham Shehabeldin entered § 87(2)(b) in Staten Island.	A . Exonerated
B . PO Nicholas Ditore	Abuse: Police Officer Nicholas Ditore entered § 87(2)(b) in Staten Island.	B . Exonerated
C . LT Eduard Shtotland	Abuse: Lieutenant Eduard Shtotland threatened to arrest § 87(2)(b)	C . Exonerated
D . LT Eduard Shtotland	Abuse: Lieutenant Eduard Shtotland searched § 87(2)(b)	D . Substantiated
E . LT Eduard Shtotland	Abuse: Lieutenant Eduard Shtotland forcibly removed § 87(2)(b) to the hospital.	E . Substantiated
§ 87(4-b) § 87(2)(g)	§ 87(2)(b)	§ 87(2)(b)
§ 87(4-b) § 87(2)(g)	§ 87(2)(b)	§ 87(2)(b)

Case Summary

On August 11, 2021, § 87(2)(b) filed this complaint via the CCRB's call processing system.

On August 3, 2021, at approximately 7:00 p.m., at § 87(2)(b) in Staten Island, Police Officer Haytham Shehabeldin, Police Officer Nicholas Ditore, Police Officer Marissa Pascone, Police Officer Robert Campbell, Police Officer Arniko Shrestha, and Lieutenant Eduard Shtotland, all from the 123rd Precinct, arrived in response to a 911 call from § 87(2)(b)'s neighbors. § 87(2)(b) gave PO Shehabeldin and PO Ditore consent to come into her home (**Allegation A and B: Abuse of Authority, exonerated**). While § 87(2)(b) was in her home with the officers, Lieutenant Shtotland threatened to arrest her (**Allegation C: Abuse of Authority, exonerated**). Lieutenant Shtotland ordered PO Shehabeldin to search § 87(2)(b)'s bag (**Allegation D: Abuse of Authority, substantiated**). Lieutenant Shtotland made the decision to remove § 87(2)(b) to the hospital instead of arresting her (**Allegation E: Abuse of Authority, substantiated**). No arrests or summonses resulted from this incident.

§ 87(4-b) § 87(2)(g)

The investigation received body-worn camera (BWC) footage from PO Shehabeldin, PO Ditore, PO Shrestha, PO Pascone, PO Campbell, and Lieutenant Shtotland (**BR 06**), the relevant aspects of which are discussed in further detail below

Findings and Recommendations

Allegation (A) Abuse of Authority: Police Officer Haytham Shehabeldin entered § 87(2)(b) in Staten Island.

Allegation (B) Abuse of Authority: Police Officer Nicholas Ditore entered § 87(2)(b) in Staten Island.

§ 87(2)(b) (**BR 01**) described her house as a semi-detached single-family home, which shares a wall with her neighbor's home. § 87(2)(b) noticed that her neighbors taped plants to the dividing wall on their porch, and the plants were coming on to § 87(2)(b)'s side of the property. § 87(2)(b) removed the plants with her hands as they were only affixed with scotch tape. After removing the plants, § 87(2)(b) saw around four police vehicles outside of her home and then heard a knock on her door. When § 87(2)(b) opened the door, she allowed the officers entry and did not feel pressured nor coerced to let the officers in.

BWC footage from PO Shehabeldin, contained in IA#24 (**BR 07**), from 00:15 to 00:35, shows that he and his partner, PO Ditore, are the first officers to arrive on scene and speak to § 87(2)(b) neighbors. From 02:45 to 03:20, BWC shows PO Shehabeldin walk up to § 87(2)(b)'s home, followed by PO Ditore. PO Shehabeldin opens the screen door stating "excuse me miss" to which § 87(2)(b) states "come on in." Thus, PO Shehabeldin and PO Ditore walk into § 87(2)(b)'s home.

As established by *People v. Gonzalez*, 39 N.Y.2D 122 (**BR 08**), the court ruled that consent must be a free and unconstrained choice, and that official coercion, even if deviously subtle, nullifies apparent consent.

§ 87(2)(g)

it is therefore recommended that **Allegation A** and **Allegation B** be closed as **exonerated**.

Allegation (C) Abuse of Authority: Lieutenant Eduard Shtotland threatened to arrest

§ 87(2)(b)

It is undisputed that § 87(2)(b) took down her neighbor's decorative plants from their side of the property.

§ 87(2)(b) testified (**BR 01**) that she could not remember the exact quote, but Lieutenant Shtotland gave § 87(2)(b) the impression that she could either be arrested or go to the hospital. § 87(2)(b) could not remember if Lieutenant Shtotland told her what she could be arrested for but was told by PO Pascone that her neighbors called the police because she had removed the decorative plants from the shared porch wall.

Lieutenant Shtotland testified (**BR 05**) that before arriving at the location it was communicated via radio that there was a 10-39 for Criminal Mischief at § 87(2)(b). When at the location, § 87(2)(b)'s neighbors told Lieutenant Shtotland that § 87(2)(b) broke their decorative plants, that she was erratic, and that § 87(2)(b) would scream at the neighbors and their kids over the fence that separated their homes. When speaking to § 87(2)(b) she admitted to Lieutenant Shtotland that she did break the decorative plants. Lieutenant Shtotland believed he had probable cause to arrest § 87(2)(b).

BWC footage from PO Shrestha, contained in IA#26 (**BR 11**), from 23:15 to 24:35, shows Lieutenant Shtotland come into § 87(2)(b) home and asks § 87(2)(b) why she took down her neighbor's property to which § 87(2)(b) states that she took it down due to it blocking her vision and that they put it up to irritate her. From 29:05 to 29:35, Lieutenant Shtotland tells § 87(2)(b) that they cannot leave her home as she damaged her neighbor's property and thus put the officers in a position to arrest her, to which § 87(2)(b) tells them to arrest her then.

In the 911 call audio, contained in IA#47 (**BR 10**), the caller, § 87(2)(b)'s neighbor, requested police to 228 Woodrow Road as he stated he was calling for his wife who put up decorations on their porch, but their neighbor continued to rip the decorations off and harass his wife. The neighbor stated that there were no injuries nor weapons involved.

According to NY Penal Law § 145.00 (**BR 09**), a person is guilty of criminal mischief in the fourth degree when having no right to do so nor any reasonable ground to believe that they have such right, they intentionally damage property of another person.

§ 87(2)(g)

Therefore, it is recommended that **Allegation C** be closed as *exonerated*.

Allegation (D) Abuse of Authority: Lieutenant Eduard Shtotland searched § 87(2)(b)

As shown in BWC footage from PO Shrestha, contained in IA#26 (**BR 11**), it had been determined that there was probable cause to arrest § 87(2)(b) for criminal mischief, shown from 23:15 to 29:35. From 37:10 to 38:55, before the decision was made to remove § 87(2)(b) to the hospital, PO Shehabeldin states to § 87(2)(b) that he is trying to get a form of identification from § 87(2)(b) § 87(2)(b) who is not handcuffed, and is surrounded by Lieutenant Shtotland and all officers except PO Campbell, is asked if she has a driver's license, a permit, a residence card or an identification card to which she states she does and asks if she can have her bag. Lieutenant Shtotland finds § 87(2)(b)'s fanny pack behind him and hands the fanny pack to PO Shehabeldin stating at 38:00, "my officer is going to take a look at it." The bag's main pocket is already open and PO Shehabeldin grabs at some cards in it looking for § 87(2)(b)'s identification. § 87(2)(b) reaches for her bag stating, "it's not in there," but is told by PO Pascone to tell them where it is rather than reaching for it. PO Shehabeldin then takes out a small wallet from § 87(2)(b)'s fanny pack. § 87(2)(b) grabs it from PO Shehabeldin's hand stating "it's here" when he goes to put it back in the fanny pack. PO Shehabeldin looks through the wallet and retrieves § 87(2)(b)'s identification card from it. PO Shehabeldin goes to hand the bag to Lieutenant Shtotland, but § 87(2)(b) tells them to zip it up to which Lieutenant Shtotland does and places it back where it was. § 87(2)(b) (**BR 01**) did not allege that her bag was searched.

§ 87(2)(g)

§ 87(2)(g)

Lieutenant Shtotland (**BR 05**) believed he had probable cause to arrest § 87(2)(b) and as such he believed that § 87(2)(b) was not allowed to look in her bag at that point during the interaction. Lieutenant Shtotland also explained that he did not have any reason to believe that § 87(2)(b) had a weapon in her bag. Lieutenant Shtotland did not consider PO Shehabeldin reaching into § 87(2)(b)'s bag to be a search as PO Shehabeldin was just trying to retrieve § 87(2)(b)'s identification from it.

As established by People v. DeBour, 40 N.Y.2D 210 (**BR 18**), an officer is permitted to conduct a search if the officer reasonably believes a person to be armed. Furthermore, as established by People v. Reid, 24 N.Y.3D 615 (**BR 19**), under a Search Incident to Lawful Arrest (SILA), a search must be incident to an actual arrest, not just to probable cause that might have led to an arrest but did not.

§ 87(2)(g)

It is therefore recommended that **Allegation D** be closed as *substantiated*.

Allegation (E) Abuse of Authority: Lieutenant Eduard Shtotland forcibly removed § 87(2)(b) to the hospital.

§ 87(2)(b) testified (**BR 01**) she was removed to § 87(2)(b) where she was released one hour later.

Lieutenant Shtotland testified (**BR 05**) that he had probable cause to arrest § 87(2)(b) but he wanted to determine whether she needed medical attention instead. As Lieutenant Shtotland spoke to § 87(2)(b) Lieutenant Shtotland noticed that § 87(2)(b) was irritated, rambled about issues she had with her neighbors, was forgetful, and being irrational as § 87(2)(b) told officers that she believed her neighbors put up the fence to annoy her. Lieutenant Shtotland also had PO Shehabeldin call § 87(2)(b) to get information on § 87(2)(b)'s wellbeing, to which PO Shehabeldin was informed by § 87(2)(b) that § 87(2)(b) had a neurologist appointment coming up within the next few weeks to see if she had dementia. Lieutenant Shtotland did not see § 87(2)(b) do anything physical with her body that would consider self-harm, nor engage in behavior that was considered violent, nor did Lieutenant Shtotland hear § 87(2)(b) make threats towards her neighbors and their children. However, Lieutenant Shtotland classified § 87(2)(b) as a danger to herself and others as it was unknown what she would do next. For this reason, § 87(2)(b) was not allowed to stay in the custody of § 87(2)(b) who had arrived prior to § 87(2)(b) being removed to the hospital. Lieutenant Shtotland also did not issue § 87(2)(b) a summons or arrest her for the property damage as Lieutenant Shtotland did not think § 87(2)(b) could be held criminally responsible when she was not at full mental capacity.

BWC footage from Lieutenant Shtotland, contained in IA#27 (**BR 12**), from 22:40 to 23:20, shows Lieutenant Shtotland tell PO Shehabeldin to call § 87(2)(b) as § 87(2)(b) may have psychological issues such as dementia since she is unable to recall phone numbers nor if she took her medication. Lieutenant Shtotland then further states to PO Shehabeldin that if § 87(2)(b)

§ 87(2)(b) does indeed have psychological issues, they can EDP her. Lieutenant Shtotland then proceeds to call for an ambulance to the location, stating § 87(2)(b) needs an evaluation at the 25:15 mark. From 26:45 to 28:30, as § 87(2)(b) sits at the kitchen table, she is asked if she has dementia or Alzheimer's to which she states she does not know. Lieutenant Shtotland then proceeds to tell § 87(2)(b) that he will be going a different route stating, "instead of arresting you, I'm going to send you for an evaluation at the hospital. Would you rather go to the precinct or the hospital?" Lieutenant Shtotland then explains to § 87(2)(b) the reason she is going to the hospital is because she is forgetful, thus he has a feeling she has a medical condition.

§ 87(2)(a) PHL § 18(6)

Patrol Guide Procedure 221-13 (BR 13), states that an emotionally disturbed person (EDP) is "a person that appears to be mentally ill or temporarily deranged and is conducting himself in a manner which a police officer reasonably believes is likely to result in serious injury to himself or others," and officers are instructed to remove an EDP to the hospital.

§ 87(2)(g)

It is therefore recommended that **Allegation E** be closed as *substantiated*.

§ 87(4-b) § 87(2)(g)

§ 87(4-b) § 87(2)(g)

Civilian and Officer CCRB Histories

- This is the first CCRB complaint to which § 87(2)(b) has been a party (**BR 21**).
- Lieutenant Shtotland has been a member of service for 14 years and has been a subject in one complaint and one allegation, none of which were substantiated. § 87(2)(g)
- PO Shehabeldin has been a member-of-service for five years and this is the first complaint to which he has been a subject.
- PO Ditore has been a member-of-service for one year and this is the first complaint to which he has been a subject.

Mediation, Civil, and Criminal Histories

- This complaint was not suitable for mediation.
- As of September 20, 2022, the New York City Office of the Comptroller has no record of a Notice of Claim being filed in regards to this incident (**BR 17**).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Squad: 14

Investigator:	Haeley Galeote	Inv. Galeote	09/30/2022
	Signature	Print Title & Name	Date

Squad Leader:	Cassandra Fenkel	IM Cassandra Fenkel	09/30/2022
	Signature	Print Title & Name	Date

Reviewer:			
	Signature	Print Title & Name	Date